

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

YASMEEN LATIF, *Claimant*

v.

TEAM EXECUTIVE TRADING CORP. AND SEAGOLD (PRIVATE)
LTD., *Respondent*.

DOCKET NO. 2017(I)

Served: February 6, 2025

BEFORE: Theresa DIKE, *Small Claims Officer*.

ORDER DISMISSING COMPLAINT FOR FAILURE TO PROSECUTE

Claimant Yasmeen Latif initiated this proceeding by filing an informal complaint against Respondents Team Executive Trading Corp (“Team Executive”) and Seagold Private Ltd. (“Seagold”) with the Federal Maritime Commission (“FMC” or “Commission”), alleging that Respondents violated 46 U.S.C. §§ 41102(c), 41104(a)(14), and 41104(a)(15) of the Shipping Act in connection with an arrangement to deliver a package on behalf of Claimant from the United States to Pakistan.

On November 6, 2024, the Secretary of the FMC issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), stating that the Claim had been served on Respondents and they were required to file their respective responses by December 2, 2024, and indicate whether they consent to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission’s Rules of Practice and Procedure (46 C.F.R. § 502.301-305).

On December 2, 2024, Seagold submitted its response to the Claim, together with its consent to the use of informal procedures for the proceeding. No response was received from Team Executive. Therefore, on December 9, 2024, the Chief Administrative Law Judge assigned this proceeding to the undersigned Small Claims Officer (“SCO”) to adjudicate the proceeding. The undersigned sent an email to the parties on December 10, 2024, instructing Team Executive to immediately file a response to the Claim; however, it failed to comply.

On December 18, 2024, the parties were directed to submit certain additional information and documents by January 16, 2025, pursuant to 46 C.F.R. §§ 502.304(a) and (e) of the Commission's Rules of Practice and Procedure, which authorize the SCO to request additional information from the parties if deemed necessary. On January 15, 2025, Respondent Seagold submitted its response; however, no response was received from Claimant. On January 21, 2025, the SCO followed up with an email to Claimant directing

Claimant to submit the requested information and documents by January 24, 2025, and to explain why it failed to comply within the original deadline. That email further advised that failure to comply with the Order could result in the dismissal of the proceeding.

Likewise, Claimant failed to respond to the January 21, 2025, order. Thus, on January 31, 2025, another Order was issued, instructing Claimant to show cause by February 5, 2025, why the Claim against Respondents should not be dismissed for failure to prosecute. Claimant Order to Show Cause at 2. The Order further advised that “[f]ailure to respond to this order will result in the dismissal of this proceeding.” Claimant Order to Show Cause at 2. Claimant did not respond to the Order to Show Cause. Messages received from the Commission’s email server to the emails sent to the parties indicate that all emails were delivered to all the parties, including Claimant.

A complainant’s failure to prosecute is addressed by the Commission’s Rules of Practice and Procedure. Rule 72(b) provides:

If the complainant fails to prosecute or to comply with these rules or an order in the proceeding, a respondent may move to dismiss the action or any claim against it, or the presiding officer, after notice to the parties, may dismiss the proceeding on its own motion. Unless the dismissal states otherwise, a dismissal under this subpart, except one for lack of jurisdiction or failure to join a party, operates as an adjudication on the merits.

46 C.F.R. § 502.72(b). Although Rule 72, governing dismissal of Commission proceedings, is not applicable to Subpart S proceedings, the undersigned used the rule as a guide to determine the appropriate course of action in this situation.

Claimant’s failure to follow through on the allegations against Respondents and to provide evidence substantiating its claim for reparation precludes the issuance of a default judgment against Respondent Team Executive or the adjudication of the allegations against Respondent Seagold. Accordingly, Claimant Yasmeen Latif’s Claim against Respondents is dismissed with prejudice for failure to prosecute.

THERESA DIKE Digitally signed by THERESA DIKE
Date: 2025.02.06 16:48:22 -05'00'

Theresa Dike
Small Claims Officer